

Court No. - 39

Case :- WRIT - C No. - 43415 of 2018

Petitioner :- M/S Padam Atta Chakki

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Sanjay Mishra

Counsel for Respondent :- C.S.C.,Baleshwar Chaturvedi

Hon'ble B. Amit Sthalekar,J.

Hon'ble Mrs. Manju Rani Chauhan,J.

Heard Sri Sanjay Mishra, learned counsel for the petitioner, Sri Baleshwar Chaturvedi, learned counsel for the respondents no. 2 & 3 and learned Standing Counsel for respondent no. 1.

The petitioner in the writ petition is seeking a direction to the respondents not to recover the electricity bill dated 29.08.2018 of Rs.7,42,942/-. According to the petitioner, it applied for an electricity connection for running an Atta Chakki in the name of M/S Padam Atta Chakki on 14.09.2009. In the meantime, due to financial problems, it could not deposit the electricity bill as stated in paragraph 15 of the writ petition.

Sri Baleshwar Chaturvedi, learned counsel for the respondents no. 2 & 3 submits that the petitioner in respect of disputed bill and arrears has a remedy under Clause 6.5 of the Electricity Supply Code, 2005 and it may approach the Executive Engineer, Vidyut Vitran Khand - II, Dakshinanchal Vidyut Vitran Nigam Ltd, Etawah, respondent no. 3.

We, therefore, dismiss the writ petition with liberty to the petitioner to approach the Executive Engineer, Vidyut Vitran Khand - II, Dakshinanchal Vidyut Vitran Nigam Ltd, Etawah, respondent no. 3 in respect of its grievance.

Order Date :- 3.1.2019

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